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uOttawa criminologists go to court to protect research confidentiality

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Chris Bruckert (left) & Colette Parent are asking Quebec Superior Court to preserve vital confidentiality.

Two University of Ottawa criminologists are going to court to protect the confidentiality of research records they obtained in 2007.

Professors Colette Parent and Chris Bruckert are asking the Superior Court of Quebec to ensure the confidentiality on which their work as criminologists is based. At issue is police access to the recording and transcript of an interview they conducted with a Montreal sex worker who, five years after being a subject in their research, was charged with murder.

CAUT is funding their legal case as the University of Ottawa has declined to do so. In a letter to CAUT executive director James Turk Dec. 19, 2012, university president Allan Rock said “The University of

Ottawa recognizes its role ... in safeguarding entrusted information. However, the University does not consider that its role extends to the payment of legal costs if researchers decide to challenge the seizure of research records in the context of criminal proceedings.”

The criminologists’ work was approved by the university’s research ethics board on condition the researchers promised confidentiality to their research subjects.

“Assurances of confidentiality are necessary for the understanding of many forms of human behaviour,” said Turk. “Only from such research are we able to develop appropriate social policy and advance human knowledge.”

He said analogous issues have arisen with investigative journalists whose ability to report on vital public issues sometimes involves being able to promise confidentiality to their sources.

“Unlike the University of Ottawa’s refusal to defend Bruckert and Parent, newspapers typically defend journalists’ confidentiality all the way to the Supreme Court if necessary,” Turk said.

In Canada, publicly funded research involving human subjects must be approved by properly constituted research ethics boards and must be consistent with the federal Tri-Council Policy Statement on Research Involving Human Subjects. The policy notes “the ethical duty of confidentiality is essential to the trust relationship between researcher and participant, and to the integrity of the research project.”

It further states that “when researchers obtain information with a promise of confidentiality, they assume an ethical duty that is central to respect for participants and the integrity of the research project. Breaches of confidentiality may harm the participant, the trust relationship between the researcher and the participant, other individuals or groups, and/or the reputation of the research community. Research that probes sensitive topics (e.g., illegal activities) generally depends on strong promises of confidentiality to establish trust with participants.”

Bruckert and Parent are being represented by prominent Toronto lawyer Peter Jacobsen, and Montreal criminal lawyer Nadine Touma. The court hearing is expected in June.